

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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Jamaine Taylor, Roberta Ellis. Joseph Basile and Jamaal Brown,

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:

:

Index Number:

Date Purchased:

Date Filed:

Plaintiffs

:

SUMMONS

-against-

:

City of New York, New York City Police Department,  
Police Officer Ryan Smith, Shield 21735 of the 52 Precinct,  
and New York City Police Officers John Doe,

:

:

:

Plaintiff Taylor’s  
residence is:  
357 East 163 Street  
Bronx, NY

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and Plaintiffs reside in Bronx County.

Dated: July 13, 2024  
BRONX, NY

Yours, etc.,

*Jason Steinberger*

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiffs  
505 Eighth Avenue, Suite 701  
New York, NY 10018  
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Ryan Smith, Shield 21735 of the 52 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Jamaine Taylor, Roberta Ellis, Joseph Basile and Jamaal :  
Brown, :

Plaintiffs

VERIFIED COMPLAINT

-against-

City of New York, New York City Police Department, :  
Police Officer Ryan Smith, Shield 21735 of the 52 Precinct, :  
and New York City Police Officers John Doe, :

Defendants

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Jamaine Taylor, (hereinafter referred to as “TAYLOR”) is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Roberta Ellis, (hereinafter referred to as “ELLIS”) is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Joseph Basile (hereinafter referred to as “BASILE”) is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Jamaal Brown, (hereinafter referred to as “BROWN”) is a resident of Bronx County, State of New York.

5. That at all times hereinafter mentioned, Police Officer Ryan Smith, Shield 21735 of the 52 Precinct (hereinafter referred to as “SMITH”) was employed by the New York City Police Department.

6.

7. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

8. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

9. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

10. That within ninety days from the date of arrest, notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

11. On or about April 12, 2024, a hearing required by Municipal Law 50-H was conducted as to all Plaintiffs. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

12. That on or about January 2, 2024 at approximately 4:00 PM in the vicinity of 2590 Briggs Avenue, Bronx, NY, Plaintiffs waiting to go out for dinner when they were stopped for no lawful reason by SMITH and DOES.

13. That at no time did any of the Plaintiffs possess a controlled substance.

14. That at no time did any off the Plaintiffs sell a controlled substance.

15. That at no time did any of the Plaintiffs engage in any criminal or unlawful conduct.

16. That after Plaintiffs were arrested, they were transported to 52 precinct.

17. That while Plaintiffs were inside of the 52 precinct, Plaintiffs were each strip searched

18. That while Plaintiffs were inside of the 52, Plaintiffs TAYLOR, BASILE and BROWN were held in a holding cell occupied with other males for several hours.

19. That while Plaintiffs were inside of the 52, Plaintiff ELLIS was held in a holding cell occupied with other females for several hours.

20. That after several hours at the 52 police precinct, Plaintiffs were transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.

21. That on or about January 4, 2024 each of the Plaintiffs were released from Central Booking after the Office of the Bronx County District Attorney declined to prosecute their arrests.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

22. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.

23. That Defendants acted with actual malice toward Plaintiff TAYLOR and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff TAYLOR was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff TAYLOR has been unable to sleep.

27. That as a result of the Defendants' actions Plaintiff TAYLOR sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

28. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff TAYLOR as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

30. Defendants having no lawful authority to arrest Plaintiff DIALLO, did, nevertheless, unlawfully arrest Plaintiff TAYLOR with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff TAYLOR is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

31. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. Defendants conspired to violate Plaintiff DIALLO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff TAYLOR is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**

33. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Plaintiff TAYLOR was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff TAYLOR by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff TAYLOR by claiming that Plaintiff both sold and possessed a controlled substance despite knowing that he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, SMITH and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SMITH and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff TAYLOR. Plaintiff TAYLOR is thus entitled to compensatory exemplary damages.



**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

42. Plaintiff TAYLOR repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff TAYLOR.

44. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff TAYLOR.

45. The City of New York and New York City Police Department knew that police officers within the 52 precinct were knowingly falsifying allegations that people were both selling and possessing controlled substances those police officers knew they had not and yet the City of New York and New York City Police Department permitted members of the 52 precinct to engage in such unlawful practices.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS**

46. Plaintiff ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45 as if more fully stated herein at length.

47. That Defendants acted with actual malice toward Plaintiff ELLIS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff ELLIS.

48. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

49. That as a result of the actions by Defendants, Plaintiff ELLIS was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

50. That as a result of the Defendants' actions, Plaintiff ELLIS has been unable to sleep.

51. That as a result of the Defendants' actions Plaintiff ELLIS sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS**

52. Plaintiff ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff ELLIS as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

54. Defendants having no lawful authority to arrest Plaintiff ELLIS, did, nevertheless, unlawfully arrest Plaintiff ELLIS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff ELLIS is entitled to both compensatory and exemplary damages.

**AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS**

55. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. Defendants conspired to violate Plaintiff ELLIS' statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff ELLIS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS**

57. Plaintiff ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56, as if more fully stated herein at length.

58. Plaintiff ELLIS was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

59. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff ELLIS by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

That during the pendency of the case, Defendants maliciously prosecuted Plaintiff ELLISby claiming that Plaintiff both sold and possessed controlled substances despite knowing that she had not.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

60. Plaintiffs ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. At all times pertinent hereto, SMITH and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

62. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SMITH and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT**

63. Plaintiff ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff ELLIS. Plaintiff ELLIS is thus entitled to compensatory exemplary damages.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

65. Plaintiff ELLIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff ELLIS.

67. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff ELLIS.

68. The City of New York and New York City Police Department knew that police officers within the 52 precinct were knowingly falsifying allegations that people were both selling and possessing controlled substances those police officers knew they had not and yet the City of New York and New York City Police Department permitted members of the 52 precinct to engage in such unlawful practices.

**AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS**

69. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68 as if more fully stated herein at length.

70. That Defendants acted with actual malice toward Plaintiff BASILE and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff BASILE .

71. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

72. That as a result of the actions by Defendants, Plaintiff BASILE was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

73. That as a result of the Defendants' actions, Plaintiff BASILE has been unable to sleep.

74. That as a result of the Defendants' actions Plaintiff BASILE sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

75. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff BASILE as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

77. Defendants having no lawful authority to arrest Plaintiff BASILE, did, nevertheless, unlawfully arrest Plaintiff BASILE with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff BASILE is entitled to both compensatory and exemplary damages.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

78. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Defendants conspired to violate Plaintiff BASILE 's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff BASILE is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

80. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 106, as if more fully stated herein at length.

81. Plaintiff TAYLOR was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

82. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BASILE by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

83. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BASILE by claiming that Plaintiff both sold and possessed a controlled substance when police knew he had not.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

84. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 83, as if more fully stated herein at length.

85. At all times pertinent hereto, SMITH and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

86. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SMITH and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT**

87. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff BASILE. Plaintiff BASILE is thus entitled to compensatory exemplary damages.



**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

89. Plaintiff BASILE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 88, as if more fully stated herein at length.

90. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff BASILE.

91. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff BASILE.

92. The City of New York and New York City Police Department knew that police officers within the 52 precinct were knowingly falsifying allegations that people were both selling and possessing controlled substances those police officers knew they had not and yet the City of New York and New York City Police Department permitted members of the 52 precinct to engage in such unlawful practices.

**AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS**

93. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 92 as if more fully stated herein at length.

94. That Defendants a with actual malice toward Plaintiff BROWN and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff BROWN .

95. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

96. That as a result of the actions by Defendants, Plaintiff BROWN was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

97. That as a result of the Defendants' actions, Plaintiff BROWN has been unable to sleep.

98. That as a result of the Defendants' actions, Plaintiff BROWN was forced to miss multiple days of work.

99. That as a result of the Defendants' actions Plaintiff BROWN sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

100. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 99, as if more fully stated herein at length.

101. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff BROWN as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

102. Defendants having no lawful authority to arrest Plaintiff BROWN , did, nevertheless, unlawfully arrest Plaintiff BROWN with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff BROWN is entitled to both compensatory and exemplary damages.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**

103. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 102, as if more fully stated herein at length.

104. Defendants conspired to violate Plaintiff BROWN 's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff BROWN is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS**

105. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 104, as if more fully stated herein at length.

106. Plaintiff BROWN was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

107. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BROWN by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

108. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BROWN by claiming that Plaintiff both sold and possessed a controlled substance despite police knowing that he had not.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS  
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

109. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 108, as if more fully stated herein at length.

110. At all times pertinent hereto, SMITH and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

111. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SMITH and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY SEVENTH CAUSE OF ACTION AS AGAINST CITY OF  
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

112. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 108, as if more fully stated herein at length.

113. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff BROWN. Plaintiff BROWN is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF  
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

114. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 113, as if more fully stated herein at length.

115. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff BROWN .

116. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff BROWN .

117. The City of New York and New York City Police Department knew that police officers within the 52 precinct were knowingly falsifying allegations that people were both selling and possessing controlled substances those police officers knew they had not and yet the City of New York and New York City Police Department permitted members of the 52 precinct to engage in such unlawful practices.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the ninth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the tenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the eleventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the twelfth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the thirteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the fourteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the fifteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the sixteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the seventeenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the

jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the eighteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the nineteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the twentieth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the twenty-first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the twenty-second cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the twenty-third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the twenty-fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.



**On the twenty-fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the twenty-sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the twenty-seventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the twenty-eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

*Jason Steinberger*

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Jason A. Steinberger, Esq.  
Attorney for Plaintiffs  
505 Eighth Avenue, Suite 701  
New York, NY 10018  
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 13, 2024

Jason Steinberger  
Jason A. Steinberger